MINUTES OF MEETING

Each person who decides to appeal any decision made by the Board with respect to any matter considered at the meeting is advised that the person may need to ensure that a verbatim record of the proceedings is made, including the testimony and evidence upon which such appeal is to be based.

BOBCAT TRAIL
COMMUNITY DEVELOPMENT DISTRICT

The regular meeting of the Board of Supervisors of the Bobcat Trail Community Development District was held on **Tuesday, September 3, 2024, at 3:00 p.m.** at the Bobcat Trail Community Center, 1352 Bobcat Trail Blvd., North Port, FL 34288.

Present and constituting a quorum:

Jeffrey Brall	**Board Supervisor, Chair**
Richard Burke	**Board Supervisor, Vice Chair**
Steven Ball	**Board Supervisor, Assistant Secretary**
Michael SanAntonio	**Board Supervisor, Assistant Secretary**
Paul Fisher	**Board Supervisor, Assistant Secretary**

Also present were:

Belinda Blandon	**District Manager, Rizzetta & Company, Inc.**
David Jackson	**District Counsel, Persson, Cohen, Mooney, Fernandez & Jackson, P.A.**
Audience	

FIRST ORDER OF BUSINESS **Call to Order/Roll Call**

Ms. Blandon called the meeting to order and read roll call.

SECOND ORDER OF BUSINESS **Pledge of Allegiance**

The Board, Staff, and Audience recited the Pledge of Allegiance.

THIRD ORDER OF BUSINESS **Approval of Agenda**

Mr. Fisher added resident concerns to New Business.

Ms. Blandon added consideration of the Brown & Brown insurance renewal proposal to New Business.

On a Motion by Mr. Brall, seconded by Mr. SanAntonio, with all in favor, the Board approved the agenda for the Bobcat Trail Community Development District as amended.

FOURTH ORDER OF BUSINESS **Public Comments**

Mr. Verrill commented on the minutes from the previous meeting that erroneously

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stated that the Tract B Lake was being transferred to the CDD. It was noted that this was a typographical error.

Mr. O'Neal at Canary Palm Way requested a status update with the FEMA appeal. He also requested information about the CDD fees for the golf course property and their payment status.

FIFTH ORDER OF BUSINESS **Consideration of the Minutes of the Board of Supervisors' Meeting held on August 06, 2024**

Ms. Blandon presented the Minutes of the Board of Supervisors meeting held on August 06, 2024, and asked if there were any questions, comments, and/or changes. There were none.

> On a Motion by Mr. SanAntonio, seconded by Mr. Burke, with all in favor, the Board Approved the Minutes of the Board of Supervisors Meeting held on August 06, 2024, for the Bobcat Trail Community Development District.

SIXTH ORDER OF BUSINESS **Consideration of the Minutes of the Board Workshop held on August 15, 2024**

Ms. Blandon presented the Minutes of the Board Workshop held on August 15, 2024, and asked if there were any questions, comments, and/or changes. There were none.

> On a Motion by Mr. Brall, seconded by Mr. San Antonio, with all in favor, the Board Approved the Minutes of the Board Workshop held on August 15, 2024, for the Bobcat Trail Community Development District.

SEVENTH ORDER OF BUSINESS **Discussion of HB 7013 – District Goals and Objectives and Consideration of Resolution 2024-11, Adopting Goals and Objectives**

Ms. Blandon asked the Board which Goals and Objectives they selected. Mr. Brall answered that they selected Financial Transparency and Teamwork. The Board agreed. With no further discussion regarding Goals and Objectives, Ms. Blandon then presented Resolution 2024-11 to the Board for Consideration. There were no comments or questions.

> On a Motion by Mr. SanAntonio, seconded by Mr. Brall, with all in favor, the Board Adopted Resolution 2024-11, Adopting Goals and Objectives for the Bobcat Trail Community Development District.

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EIGHTH ORDER OF BUSINESS **Discussion and Consideration of Proposals for Reserve Study**

Mr. Brall advised that the Board reviewed the estimates at the prior workshop and there was a consensus in favor of Custom Reserves' proposal.

On a Motion by Mr. SanAntonio, seconded by Mr. Brall, with all in favor, the Board Approved the proposal from Custom Reserves in the amount of $5,400.00, for the Bobcat Trail Community Development District.

NINTH ORDER OF BUSINESS **Discussion Regarding Roadway Pavement Assessment Report and Review of Cash Flow Analysis**

Mr. Ball discussed the report and advised that to-date, Phase One (Coconut Palm) and Two (Royal Palm) have been completed. Mr. Ball suggested that the project move forward, and that RFPs be done for Phase Three (Phoenix Palm Terrace), Four (The Villas), and Five (Silver Palm). He then expressed concern that the cash flow analysis presented in 2020 might not accurately account for inflation. Ms. Blandon asked if there was any available data on the amount of square yardage per phase. Mr. Ball affirmed that there was. He then mentioned some areas that may need to be touched up as part of the next three phases of the project.

TENTH ORDER OF BUSINESS **Public Hearing to Consider the Adoption of the FY 2024/2025 Budget and the Imposition of Operations and Maintenance Special Assessments, Adoption of an Assessment Roll, and the Levy, Collection, and Enforcement of the Same**

Ms. Blandon advised that the Fiscal Year 2024/2025 Budget and the Special Assessments would be covered under one Public Hearing. She further advised the Audience that they may comment on either issue during the Public Hearing.

On a Motion by Mr. Brall, seconded by Mr. Burke, with all in favor, the Board Opened the Public Hearing to Consider the Adoption of the FY 2024/2025 Budget and the Imposition of Operations and Maintenance Special Assessments, Adoption of an Assessment Roll, and the Levy, Collection, and Enforcement of the Same, for the Bobcat Trail Community Development District.

Ms. Blandon advised that the Public Hearing was open. She asked the Audience if there were any comments regarding the budget or the imposition of special assessments. There were none.

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On a Motion by Mr. Brall, seconded by Mr. Burke, with all in favor, the Board Closed the Public Hearing to Consider the Adoption of the FY 2024/2025 Budget and the Imposition of Operations and Maintenance Special Assessments, Adoption of an Assessment Roll, and the Levy, Collection, and Enforcement of the Same, for the Bobcat Trail Community Development District.

ELEVENTH ORDER OF BUSINESS **Presentation of the Proposed Final Budget for Fiscal Year 2024/2025 and Consideration of Resolution 2024-09, Annual Appropriations and Adopting the FY 2025 Budget**

Ms. Blandon presented the Proposed Final Budget for Fiscal Year 2024/2025 with a General Fund budget of $1,105,945.00, which includes an increase of $114,679.00. She then asked if there were any questions.

Mr. Fisher inquired about why golf course information was not available under the budget narrative. Ms. Blandon advised that the budget was prepared by the former management company, and she was therefore unable to speak to the issue. Board discussion ensued about the golf course.

On a Motion by Mr. Fisher, seconded by Mr. Brall, with all in favor, the Board Adopted Resolution 2024-09, Annual Appropriations and Adopting the Fiscal Year 2024/2025 Budget, for the Bobcat Trail Community Development District.

TWELFTH ORDER OF BUSINESS **Consideration of Resolution 2024-10, Making a Determination of Benefit; Imposing Special Assessments, Providing for the Collection and Enforcement of Special Assessments**

Ms. Blandon asked if there were any questions or comments about the Resolution. There were none.

On a Motion by Mr. SanAntonio, seconded by Mr. Brall, with all in favor, the Board Adopted Resolution 2024-10, Making a Determination of Benefit; Imposing Special Assessments, Providing for the Collection and Enforcement of Special Assessments, for the Bobcat Trail Community Development District.

THIRTEENTH ORDER OF BUSINESS **Discussion Regarding Pool Pump and Cost Savings**

Mr. Burke discussed turning off the pool pump for six hours a day (11 p.m. until 5 a.m.) using a timer to reduce costs by 25%. He noted that the timer should be relatively inexpensive.

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On a Motion by Mr. Burke, seconded by Mr. Brall, with all in favor, the Board Approved the purchase of a timer and completion of the work needed to implement the idea, with a not-to-exceed amount of $1,000.00, for the Bobcat Trail Community Development District.

FOURTEENTH ORDER OF BUSINESS **Consideration of Brown & Brown Proposal for Insurance Renewal**

Ms. Blandon covered the insurance renewal proposal in detail with the Board. She discussed the Cyber Attack coverage with the Board, informing them that it was an optional coverage. Brief Board discussion ensued. The Board decided to forego the optional coverage.

On a Motion by Mr. Burke, seconded by Mr. Brall, with all in favor, the Board Approved the renewal proposal from Brown & Brown Insurance, in the amount of $37,931.00, subject to the removal of the Cyber Attack Coverage Endorsement, for the Bobcat Trail Community Development District.

FIFTEENTH ORDER OF BUSINESS **Resident Concerns**

Mr. Fisher discussed an email sent by a concerned resident regarding the signs on the monuments. Brief Board discussion ensued about the work recently redone on the monuments, including the repainting of the lettering and confirming that the signs were not taken down for repainting. Mr. Burke advised that he will have the signs looked at for repair.

SIXTEENTH ORDER OF BUSINESS **Acceptance of Landscape Committee Meeting Minutes of July 16, July 22, July 25, and July 30, 2024**

Ms. Blandon presented the Landscape Committee Meeting Minutes from July 16, July 22, July 25, and July 30, 2024, for Board acceptance.

On a Motion by Mr. SanAntonio, seconded by Mr. Brall, with all in favor, the Board Accepted the Landscape Committee Meeting Minutes of July 16, July 22, July 25, and July 30, 2024, for the Bobcat Trail Community Development District.

SEVENTEENTH ORDER OF BUSINESS **Staff Reports**

A. Field Manager
Mr. Fowler was not in attendance and thus, provided no comment on his report. Ms. Blandon advised the Board that she could forward any questions, comments, and/or concerns to Mr. Fowler. Mr. Brall commented on the landscape portion of the report and noted that several items had not yet been addressed.

B. District Engineer
There was no report.

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C. District Counsel

Mr. Jackson verified the typographical error made in the last meeting's Minutes. He noted that 'Tract B' should be changed to 'Tract E,' and encouraged a motion to amend the Minutes. He also advised that the HOA would be meeting on the issue soon.

On a Motion by Mr. Brall, seconded by Mr. Burke, with all in favor, the Board approved the amendment of the Minutes from the Board of Supervisors Meeting held on August 6, 2024, changing 'Tract B' to 'Tract E,' for the Bobcat Trail Community Development District.

Mr. Jackson provided updates on some litigation matters. Regarding the foreclosure, Mr. Jackson advised that Cloud Ten filed an answer. He also advised he has been in contact with the bank's counsel regarding some legal description issues. Mr. Jackson then provided updates on the gate arm litigation case and advised that a motion to dismiss was filed due to statute of limitations and was currently pending. He received a call from an attorney's office in Orlando pertaining to litigation regarding an injury sustained by a subcontractor during sidewalk repair work.

Mr. Jackson advised that a termination letter was sent to LMP, and a copy was issued to the Board. He further advised that termination will be effective September 30, 2024, and that deficiencies were included in the termination letter. Mr. Jackson also informed the Board that a draft contract was prepared for Artistree and was pending.

Mr. Brall advised that LMP's May, June, July, and August payments have been held back pending completion of work. He noted that the only work done by LMP in August was mowing, no trimming or weeding. Brief Board discussion ensued.

Mr. Jackson advised that the Board should work with Mr. Fowler and to continue to document work done by LMP. Additional Board discussion ensued.

D. District Manager

Ms. Blandon advised that the next Board of Supervisors meeting is scheduled for Tuesday, October 1, 2024, at 3:00 p.m.

She advised that updates were sent to the Board by email regarding the transition. Ms. Blandon informed the Board that the financials are still pending because Inframark had not sent over reconciliations which was causing a delay.

Ms. Blandon briefly discussed the Boards' credit cards to determine who needed one so that she could have accounting work with the bank to have those sent out. It was advised that Mr. Burke and Mr. Ditterline both needed a card.

EIGHTEENTH ORDER OF BUSINESS Other Reports

A. Infrastructure/Asset Management Committee (Board Workshop)

Mr. Brall asked that if the Board has anything to add, please send it to him.

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B. Landscape Committee
Mr. Brall advised that there was no report as they wait for the new vendor to begin work.

C. Newsletter Supervisor
Mr. Fisher advised that the newsletter would be released the following the IA meeting.

D. Finance Supervisor
There was no report.

E. Lakes and Roads Supervisor
Mr. Ball updated the Board on the progress of the ongoing lake project. He advised that the drainage for Lake A1 and A2 is not where the vendor would like it to be at this time and that they will modify it at no cost. An engineer will be conducting a long-term study on the area. When asked about a potential completion date for the project, Mr. Ball estimated one month.

Solitude is getting more aggressive with the algae treatment due to the presence of some small algae blooms. Some lake debris has been identified and Mr. Ball advised that he is waiting for a proposal from Solitude for removal. Mr. Ball also shared that Mr. Fowler will start checking for diluted oxygen in the lakes. He advised that Solitude will provide ideas for aeration to improve the overall health of the lakes.

F. Maintenance Supervisor
Mr. Burke advised that he spoke to Hoover about replacing a butterfly valve on a PRV behind 1813 Coconut and that he was currently waiting on an estimate.

Mr. Burke then spoke about a problem that occurred with the pool the previous week. He advised that the pool maintenance company's new technician mistakenly dropped the water levels of the pool. The technician also did not close the valve. Mr. Burke advised that it took thirty-six hours to get the pool's water level back up due to the error of the technician. He informed the Board that there would be no bill for the month of August due to the error. A different technician was requested for future service. Mr. Burke also mentioned an issue with the breaker panel to the Board, noting chewed wires.

G. Facilities Supervisor
Mr. SanAntonio spoke to the Board about two gate strikes that recently occurred. He advised that he has a police report for the second strike. The possibility of adding speed bumps before the gate was raised briefly.

H. HOA Updates
Mr. SanAntonio advised that there would be no HOA meeting in August. The next meeting for the Master HOA will be September 17, 2024.

I. Commercial Properties

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There were no updates for commercial properties.

J. Community Emergency Response Team (CERT)
There were no updates.

NINETEENTH ORDER OF BUSINESS **Public Comments**

Mr. O'Neal followed up about his concerns regarding the status of the appeal from FEMA and whether the taxes were up to date for the golf course property. The Board answered that the FEMA appeal was still pending and that the taxes are up to date for the golf course property. Ms. Blandon advised the Resident that appeals are taking a year to a year-and-a-half. Mr. O'Neal then expressed dissatisfaction with the quality of LMP's work behind his property. The Board acknowledged the issues with LMP's workmanship and reiterated that a new vendor was taking over. Ms. Blandon advised the Resident that the new vendor would be taking over effective October 1, 2024.

Mr. Taylor asked about the budget that was adopted during the meeting. He asked how the assessment would impact him. Ms. Blandon answered that the assessments are not new but confirmed that the Resident's taxes would be going up. She stated that there was a letter that went out that detail the assessments, but that copies of the budget were available at the meeting if needed.

A Fairway Commons Resident expressed concerns about her limited visibility of the lake from her property. She was informed by the Board of the appropriate meeting to attend to address that concern.

There were no additional public comments.

TWENTIETH ORDER OF BUSINESS **Supervisor Requests**

Ms. Blandon asked if there were any Supervisor requests or comments. There were no Supervisor requests or comments.

TWENTY-FIRST ORDER OF BUSINESS **Adjournment**

Ms. Blandon stated that there was no further business to come before the Board and asked for a motion to adjourn.

On a Motion by Mr. Brall, seconded by Mr. Ball, with all in favor the Board adjourned the meeting at 4:02 p.m., for the Bobcat Trail Community Development District.

_____ _____
Secretary/Assistant Secretary Chairman/Vice Chairman

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extracted from October 1, 2024 agenda packet